

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 38-036

**Amendment to Title 17, Chapter 5, of the Chickasaw Nation Code
(Protection of Vulnerable Adults)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to enact provisions to protect elders and other vulnerable persons.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following language to be codified at Title 17, Chapter 5, Article B, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

**ARTICLE B
PROTECTION OF VULNERABLE ADULTS**

Section 17-502.1	Definitions
Section 17-502.2	Abuse of a Vulnerable Adult
Section 17-502.3	Neglect of a Vulnerable Adult
Section 17-502.4	Exploitation of a Vulnerable Adult

SECTION 17-502.1 DEFINITIONS.

For purposes of this Article,

1. “Caretaker” means:
 - a. a person who has the responsibility or assumed the responsibility for the care of a vulnerable adult or the financial management of the resources of a vulnerable adult, voluntarily, by contract, or by law;
 - b. an institution, agency, or its employees, that voluntarily provide or is required by law to provide services or resources to a vulnerable adult; or,

c. a person who has been appointed as a guardian, limited guardian, or conservator by an order of a court.

2. “Vulnerable Adult” means:

a. A person eighteen (18) years or older who:

i. possesses physical, mental or emotional infirmity or dysfunction or has a history, or has been classified as having, an impairment which substantially limits a major life activity;

ii. has a physical or mental condition that substantially impairs the adult’s ability to adequately provide for that adult’s daily needs, including, but not limited to, a resident of a nursing home or a resident of an assisted living facility; or

iii. is unable to receive and evaluate information or make or communicate informed decisions to such an extent that the adult lacks the ability to meet essential requirements for physical health, safety, or self-care, even with reasonable available appropriate technological assistance.

b. A person sixty (60) years or older.

3. “Harm” means any real or threatened physical, mental, or emotional injury or damage to the health, safety, or welfare of body or mind that is not accidental, including but not limited to, sexual abuse, sexual exploitation, and neglect.

SECTION 17-502.2

ABUSE OF A VULNERABLE ADULT.

A. It shall be unlawful for a Caretaker to willfully or maliciously Harm a Vulnerable Adult.

B. Abuse of a Vulnerable Adult shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-502.3

NEGLECT OF A VULNERABLE ADULT.

A. It shall be unlawful for a Caretaker to willfully or recklessly:

1. fail or omit to provide to the Vulnerable Adult any of the following:

a. adequate food, clothing, shelter, medical care, or supervision; or

b. special care made necessary by the physical or mental condition of the Vulnerable Adult;

2. fail or omit to protect a Vulnerable Adult from exposure to any of the following:

- a. the use, possession, sale, or manufacture of illegal drugs;
- b. illegal activities;
- c. unwanted sexual acts or materials; or
- d. Harm.

B. Neglect of a Vulnerable Adult shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-502.4

EXPLOITATION OF A VULNERABLE ADULT.

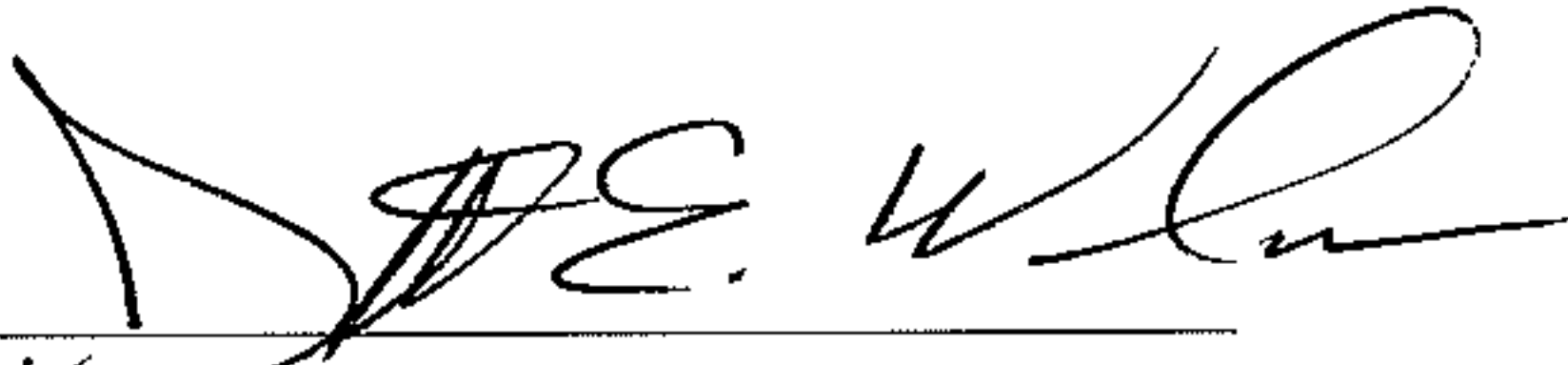
A. It shall be unlawful:

- 1. for any Caretaker to improperly use, control, take, or withhold the property, income, resources, or trust fund of a Vulnerable Adult for the Caretaker's profit or advantage other than for the benefit of the Vulnerable Adult, or
- 2. to force, compel, coerce, or entice a Vulnerable Adult to perform services for the profit or advantage of the Caretaker or another person against the will of the Vulnerable Adult.

B. Exploitation of a Vulnerable Adult shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that these additions to the Chickasaw Nation Code shall be effective as of October 1, 2021.

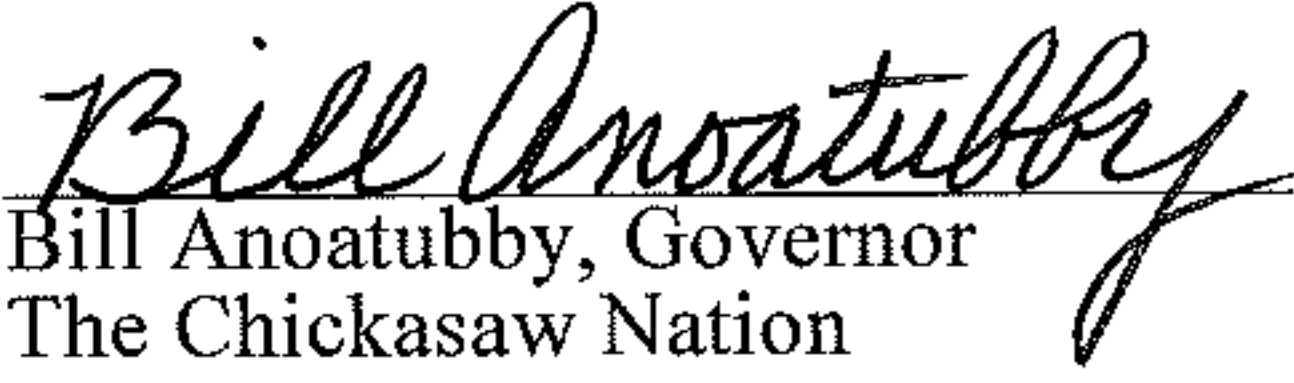
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 20, 2021, by a vote of 13 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 20 2021

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-036
Amendment to Title 17, Chapter 5, of the Chickasaw Nation Code
(Protection of Vulnerable Adults)

Explanation:

This resolution adds a new article to Title 17 and adds new criminal offenses to protect against the abuse, neglect, and exploitation of elders and other vulnerable adults.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature